

Data Privacy Compliance Statute, Sections 101-140

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Section 101 - Definitions and Scope

This statute applies to any entity that collects, processes, or stores personal data of more than 5,000 individuals within a 12-month period in connection with commercial activity.

Section 108 - Consent Requirements

Affirmative, opt-in consent must be obtained before collecting sensitive personal data, including health information, biometric identifiers, or precise geolocation data.

Consent requests must be presented separately from other contractual terms and must be revocable by the individual at any time through a mechanism no more burdensome than the one used to obtain consent.

Section 114 - Breach Notification

Upon discovery of a data breach affecting personal data, the covered entity must notify the regulator within 72 hours of becoming aware of the breach.

Affected individuals must be notified of a data breach without undue delay and in no case later than 30 days after the entity becomes aware of the breach, unless a law enforcement investigation requires a delay.

A breach notification to affected individuals must describe the categories of personal data involved, the estimated number of individuals affected, and the remedial steps taken by the entity.

Section 121 - Data Retention

Personal data may not be retained longer than is necessary for the purpose for which it was collected, and in no case longer than 24 months after the purpose has been fulfilled, absent an independent legal retention obligation.

Section 125 - Individual Rights

An individual has the right to request access to, correction of, or deletion of their personal data, and the covered entity must respond to such a request within 45 calendar days.

An entity may charge a reasonable fee for a data access request only if the request is manifestly unfounded, excessive, or repetitive.

Section 130 - Cross-Border Transfers

Personal data may be transferred outside the jurisdiction only if the receiving country has been determined to provide an adequate level of protection, or if the transfer is subject to standard contractual clauses approved by the regulator.

Section 135 - Data Protection Officer

An entity that processes personal data of more than 50,000 individuals annually or that processes sensitive personal data as a core activity must appoint a data protection officer.

Section 140 - Penalties

A violation of this statute may result in an administrative fine of up to 4 percent of the entity's global annual revenue or 20 million currency units, whichever is greater.